

Contentious Chamber

Decision on the merits 22/2024 of January 24, 2024

File number: DOS-2021-06483

Subject: Complaint regarding a non-compliant cookie banner

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Christophe Boeraeve and Dirk Van Der Kelen, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, represented by noyb – European Center for Digital Rights, located at Goldschlagstraße 172/4/3/2, 1140 – Vienna (AT), registered in (...), hereinafter referred to as "the complainant"

The defendant: Y, represented by Master Nicolas Berthold, hereinafter referred to as "the defendant"

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I. Facts and procedure

1.

On August 10, 2021, the complainant, through the non-profit association noyb – European Center for Digital Rights (hereinafter noyb), filed a complaint with the Data Protection Authority (hereinafter "DPA") against the defendant.

2.

The subject of the complaint concerns several elements related to the cookie banner present on the defendant's website. These elements allegedly violate the principles of the GDPR.

3.

On May 21, 2021, the complainant visited the defendant's website. This visit began at 15:28:49 and ended on the same day at 15:32:37. As a result of this visit, the complainant identified several flows of personal data.

4.

On May 30, 2021, noyb sent a "pre-contentious letter" to the defendant, in which the aforementioned allegations and proposals for compliance were communicated to the latter. These proposals were made under the threat of filing a complaint with the DPA if it turned out that the defendant did not comply with noyb's "pre-contentious letter."

5.

On June 29, 2021, the defendant requested clarification from the DPA's Steering Committee regarding the email it received from noyb. The defendant wishes to know the DPA's position on the points raised by noyb concerning the compliance of its cookie banner with the GDPR and laws related to the protection of personal data.

6.

On August 2, 2021, the complainant signed a mandate contract designating noyb as the mandator.

7.

The complaint form contains allegations directed against the defendant that can be summarized as follows:

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Type A violation: "there is no 'reject' option at the first level of information of the cookie banner";

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Type C violation: the button allowing the rejection of the relevant processing activities uses a link directing the data subject to another page, while the button allowing acceptance of said processing uses a 'typical' button leading the data subject to believe that this is the only real option;

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Type D violation: the colors used on the buttons present on the cookie banner highlight the one allowing acceptance of the processing;

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Type E violation: the contrast ratios used between the buttons present on the banner highlight the one allowing acceptance of the processing;

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Type I Violation: analytics cookies were classified as essential cookies, resulting in an "inaccurate classification of processing operations and cookies";

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Type K Violation: "it is not as easy to withdraw consent as it is to give it."

8.

In a subsequent communication, noyb transmits a screenshot of the cookie banner from the defendant's website, which features a "Cookie Choices" button and an "Allow All Cookies" button.

9.

On November 3, 2021, the complaint is deemed admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint is forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

10.

On December 2, 2021, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation is transmitted to the Inspection Service, along with the complaint and the inventory of documents.

11.

On August 26, 2022, the investigation by the Inspection Service is concluded, the report is attached to the file, and it is transmitted by the Inspector General to the President of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA).

The report contains findings related to the subject of the complaint and concludes that:

a) The defendant is solely responsible for processing within the meaning of Article 4.7 of the GDPR;

b) Based on the facts reported in the complaint, the Inspection Service subsequently finds, within the scope of the complaint, a number of breaches of the GDPR:

o a violation by the defendant of Articles 5.1.a and 6.1.a of the GDPR read in conjunction with Articles 4.11 and 25 of the GDPR in that, as the data controller, it presents an "accept all" option without providing a "reject all" option;

o a violation by the defendant of Articles 5.1.a and 6.1.a of the GDPR read in conjunction with Article 10/2 of the law of July 30, 2018 (hereinafter the "Framework Law") in that, as the data controller, it has made an erroneous classification of cookies, such that "analytics cookies" have been presented as strictly necessary;

1 Law of July 30, 2018 on the protection of natural persons with regard to the processing of personal data, M.B., September 5, 2018, p. 68616.

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o a violation by the defendant of Article 7.3 of the GDPR read in conjunction with Articles 24 and 25 of the GDPR, in that it "has not taken the necessary measures to ensure that it is as easy to withdraw consent as to give it";

o a violation by the defendant of Articles 5.1.a and 6.1.a of the GDPR read in conjunction with Articles 4.11 and 25 of the GDPR as well as with Article 10/2 of the Framework Law, in that it has knowingly used contrasts and colors in a misleading manner, and that there is more generally a misleading design of links on the first level of the cookie banner.

The Inspection Service also notes that the defendant's website has "slightly evolved since the 'social

media cookies' are no longer mentioned in the CMP"², without, however, having any impact on the aforementioned findings;

c) Additionally, the Inspection Service notes that the complainant was an intern at the time she mandated noyb, and that in doing so, the mandate appears to be fictitious, concluding that there is no sufficient interest arising from the documents in the file.

12.

On May 23, 2023, the Contentious Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the file can be processed on the merits.

13.

On the same date, the concerned parties are informed by registered mail of the provisions as set out in Article 95, § 2 as well as in Article 98 of the LCA. They are also informed, under Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for the defendant's response conclusions has been set for July 18, 2023, for the complainant's reply conclusions on August 16, 2023, and for the defendant's rejoinder conclusions on September 13, 2023.

14.

On May 31, 2023, the complainant agrees to receive all communications related to the case electronically and expresses her intention to exercise the right to be heard, in accordance with Article 98 of the LCA.

15.

On June 1, 2023, the defendant agrees to receive all communications related to the case electronically and expresses its intention to exercise the right to be heard, in accordance with Article 98 of the LCA. It requests, in the same email, a copy of the file (Article 95, § 2, 3° LCA), which is transmitted to it on June 6, 2023.

2 Abbreviation for "Consent Management Platform," known in French as "plateforme de gestion du consentement."

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16.

On July 18, 2023, the Contentious Chamber receives the defendant's response submissions. The defendant having submitted a reply, its arguments are summarized in point 19 below.

17.

On August 16, 2023, the Contentious Chamber receives the claimant's rebuttal submissions. In summary, the claimant argues as follows:

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The defendant is wrong to rely on previous decisions of the Contentious Chamber (decisions 117/2021 and 106/2022) given that, on the one hand, according to the case law of the Market Court, the decisions of the Contentious Chamber do not constitute jurisprudence and must thus be treated on a case-by-case basis, and, on the other hand, there is a fundamental difference between the facts of the aforementioned decisions and the present case in that, in the present case, the claimant is indeed a concerned person;

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The claimant has a legitimate interest in acting as she is a concerned person and her data has been processed unlawfully, such that the rights guaranteed to her by the GDPR have not been respected;

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The mandate by which the claimant designates noyb as her representative is not fictitious, as it is part of the natural order of things that the establishment of such an act occurs after the violation of her rights has been established, the opposite being implausible. Furthermore, the claimant acted "autonomously" at the time of selecting the defendant's website. Indeed, the voluntary nature of her commitments is supported by the absence of revocation of the mandate by the claimant after her departure from noyb;

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Despite the corrections made regarding violations of types A, C, D, and E, the other allegations – namely, violations of types I and K – persist (see point 7). Moreover, it is necessary to acknowledge

the existence of the corrected violations in order to prevent the defendant from repeating these same violations. Finally, and more generally, the claimant argues that the defendant cannot rely on the absence of a clear position from the APD or the EPDB regarding the interpretation of the GDPR rules, as these are merely interpretations, and the provisions of the GDPR have not, for their part, been amended.

18.

On September 13, 2023, the Contentious Chamber receives the defendant's reply submissions regarding the findings related to the subject of the complaint. In summary, the defendant argues as follows:

3 Market Court, January 27, 2021, 2020/AR/1333, p. 21.

4 Claimant's submissions, p. 3.

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The complaint contains only general references to the interests of concerned persons without a direct link to the interests of the claimant, such that the latter cannot demonstrate a sufficient interest in acting in this case;

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The mandate designating noyb as the claimant's representative is fictitious given that (i) the mandate was established after the "pre-contentious letter" sent on May 21, 2021, by noyb, (ii) the name of the claimant was only revealed when the complaint was filed with the APD, and (iii) the claimant was an intern at the time of the events as well as at the time of signing the mandate;

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The claimant does not provide evidence of exercising her rights with the defendant;

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The defendant has remedied the breaches attributed to it (see point 7);

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The Contentious Chamber has disregarded Article 98 of the LCA by not communicating as quickly as possible to the defendant its intention to conduct a substantive examination of the case;

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Regarding the violation of type A, the defendant responds that in 2021 – that is, at the time of the disputed facts – the APD had not yet established the requirement for cookie banners to present an option to reject all cookies at their first level of display;

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Regarding the violation of type I, the defendant responds that (i) no analytical cookie is used for marketing targeting or exclusively in its own interest, (ii) all cookies used should be considered necessary, and (iii) the principles of fairness and transparency are not violated as these analytical cookies are precisely listed as such;

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Regarding the violation of type K, the defendant reiterates that at the time of the disputed facts, the APD had not yet established the requirement that the "Reject All" button be at the same level as the "Accept All" button. Since then, the defendant has had time to comply;

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Regarding the violations of types C, D, and E, the defendant responds that, on the one hand, the purposes pursued by the defendant are sufficiently explicit so that the choice of colors made by it does not influence in any way the consent of the visitors to its website, and that, on the other hand, the choice of colors helps to highlight each of the options proposed. Furthermore, the defendant has modified the colors used on its cookie banner to align with the SI investigation report.

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19. On October 19, 2023, the parties are informed that the hearing will take place on November 22, 2023.

20. On November 22, 2023, the parties are heard by the Contentious Chamber. During the hearing of the Contentious Chamber, the complainant is represented by Ms. Lisa Steinfeld, lawyer in Brussels.

21. On December 6, 2023, the minutes of the hearing are submitted to the parties.

22. On December 12, 2023, and December 13, 2023, the Contentious Chamber receives some remarks regarding the minutes from both the complainant and the defendant.

II. Motivation

II.1. Context

23. In light of the specific elements of this case, the Contentious Chamber must establish some contextual observations as a preliminary matter.

24. On May 31, 2021, noyb publishes an article⁵ expressing its desire to put an end to the "cookie banner terror," and indicates that it has sent 500 "pre-contentious letters" to European companies benefiting from certain publicity that use cookie banners non-compliant with the GDPR. The detection of the disputed cookie banners and the drafting of the pre-contentious letters are carried out using an automated system.

25. According to noyb, companies make cookie banners a real headache for the individuals concerned, contrary to what is expected by the provisions of the GDPR. More specifically, these banners adopt a form that prevents individuals from refusing the installation of non-essential cookies as easily as they can accept them. noyb thus hoped to send pre-contentious letters to nearly 10,000 companies before the end of 2021.

26. On August 9, 2022, noyb publishes a new article⁶ following the aforementioned article. It announces the filing of 226 complaints with 18 supervisory authorities under Article 51 of the GDPR due to insufficient or even non-existent compliance.

II.2. Regarding the Competence of the DPA

27. The DPA is the Belgian authority responsible for monitoring compliance with the GDPR in accordance with Article 8.3 of the Charter of Fundamental Rights of the European Union, Article 16.2 of the Treaty on the Functioning of the European Union (TFEU), and Article 51 of the GDPR.

28. Pursuant to Article 3.1 of the GDPR, it applies in cases where the data controller is established in the territory of the European Union.

29. According to Article 77 of the GDPR, it appears that the complainant – residing in Austria – has the right to lodge a complaint with the supervisory authority of her choice, even if the latter is located in a member state where the complainant does not have her habitual residence or place of work.

30. In this case, the territorial competence of the DPA and the applicability of Belgian law are not in dispute, as the data controller identified by the SI in its investigation report has its establishment in Belgium.

II.3. Regarding the Qualifications of the Representative

31. Article 80.1 of the GDPR states the following: "The data subject has the right to mandate a body, organization, or association that is not for profit, which has been validly constituted in accordance with the law of a Member State, whose statutory objectives are of public interest and is active in the field of protecting the rights and freedoms of data subjects in the context of the protection of personal data concerning them, to lodge a complaint on their behalf, exercise on their behalf the rights referred to in Articles 77, 78, and 79, and exercise on their behalf the right to obtain compensation referred to in Article 82 when the law of a Member State provides for it."

32. Under Article 220 of the Framework Law, it is specified that the body, organization, or association that the data subject wishes to mandate must, among other things, be validly constituted under Belgian law and be active in the field of protecting the rights and freedoms of data subjects in the context of the protection of personal data for at least three years. The Contentious Chamber notes the existence of doubts regarding the compatibility of these conditions with Union law, as the European legislator did not call for any precision of this kind concerning Article 80.1 of the GDPR. That said, the Belgian provision is of no consequence in the present case.

II.4. Regarding the Interest to Act

II.4.1. The Position of the Inspection Service and the Parties

33. According to its investigation report (see point 11), the SI concludes that, based on the documents in the file, the complainant does not present a sufficient interest to act.

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34. The SI makes several clarifications. First, it notes that the "complainant was an intern at NOYB at

the time of the mandate / the complaint."⁷ Next, the SI points out that the complainant also filed four other complaints against four other legal entities, initiated by NOYB, with the APD. Finally, it is added that the act by which the complainant mandated NOYB in this case was executed after NOYB sent its pre-litigation letter to the defendant, as the former is dated August 2, 2021, while the latter is dated May 21, 2021.

35. In light of these elements, the SI concludes that the mandate "seems fictitious in view of their relationship with NOYB at the time of the mandate / the complaints"⁸ and that, consequently, the complainant does not demonstrate a sufficient interest to act.

36. The defendant agrees with the position of the SI.

37. The complainant filed her complaint against the defendant on the grounds of several allegations.

38. The complainant believes that she suffered a violation of her rights arising in particular from the GDPR at the time she visited the defendant's website. By this sole violation, the complainant would demonstrate an interest to act.

39. Regarding the mandate, NOYB expresses surprise that it is expected that the mandate be signed prior to the recognition of the violation of the complainant's rights, given that it is precisely after such recognition that the willingness of the concerned person to act in this regard can arise - and thus, in this case, with NOYB.

40. Furthermore, NOYB considers that the mandate could not be fictitious either, given that the complainant at no time expressed the desire to revoke the mandate.

41. Finally, regarding the hierarchical link that existed between the complainant and NOYB, the latter indicates concerning the complainant that, although she was an intern at NOYB at the time she visited the defendant's website, she acted entirely autonomously in this regard.

II.4.2. Position of the Contentious Chamber

42. The Contentious Chamber immediately recalls that Article 80.1 allows any concerned person to mandate "an organization, a non-profit organization, or an association" – NOYB being constituted in this latter form.

7 Inspection Service investigation report, p. 56.

8 Ibid.

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43. The Contentious Chamber qualifies the complainant as a concerned person since she visited the defendant's website, and her personal data was processed in this context.

44. Moreover, the Contentious Chamber notes that a mandate designating NOYB as representative was established in German and English on August 2, 2021 (see point 6) to represent the complainant in the cases referred to in Articles 80.1, 77, and 78 of the GDPR.

45. Going even further than the position of the SI (see point 35), the Contentious Chamber considers that the mandate presents a fictitious character, for the reasons set out below:

46. First, the Contentious Chamber raises that the complainant was indeed an intern at the time she visited the defendant's website, as well as at the time she mandated NOYB. More specifically, and in light of the complainant's statements during the hearing (see point 23), it appears that the visit to the defendant's website took place as part of a mission assigned to her by NOYB – the association where she completed her internship. This mission involved visiting 5 Belgian websites – of which the defendant's was one – to potentially ascertain the presence of a non-compliant cookie banner under the GDPR. Therefore, the Contentious Chamber cannot agree with NOYB's reasoning when it asserts in its conclusions that "the complainant selected and consulted the website autonomously and noted and documented the violation."⁹ On the contrary, the complainant herself acknowledged during the hearing that she did not select the defendant's website, but that it was part of the 5 cases assigned to her and that she was thus required to address (see point 34). The complainant having acted within the framework of an internship mission, the Contentious Chamber questions the aforementioned statement by NOYB since everything suggests that she acted as a collaborator of NOYB.

47. Notwithstanding this first reason, the Contentious Chamber notes that the complainant refrained from revoking her representation mandate after the end of her mission at NOYB, and due to the fact that she expressed her intention to file a complaint with the APD. The Contentious Chamber does not

deny this, and does not claim to judge the motivation of complainants in exercising their right to file a complaint with a supervisory authority. The question here is distinct.

48. Indeed, in the field of data protection, the Contentious Chamber is particularly attentive to the respect of the conditions for obtaining consent in the case of data processing based on this legal basis (Article 6.1.a in conjunction with 4.11 of the GDPR). Although in this case, the Contentious Chamber does not examine the

9 Complainant's reply conclusions, p. 3.

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consent as a basis for the lawfulness of processing personal data, the concept of consent presents a useful analogy.

49. In order to determine whether the consent obtained is valid, the Dispute Chamber examines, among other things, whether the data subject has freely consented to the processing of their data (art. 4.11 of the GDPR). In this regard, the Dispute Chamber observes whether the data subject had a genuine freedom of choice or whether they were able to refuse or withdraw their consent without suffering any detriment (recital 42 of the GDPR). Furthermore, the Dispute Chamber also takes into account specific cases that may compromise the freedom of their consent, particularly when there is a manifest imbalance between them and the data controller (recital 43 of the GDPR).

50. In its Guidelines 5/2020 on consent, the EDPB has interpreted that such a manifest imbalance that may affect the freedom of consent can manifest itself in the context of employment relationships.

Indeed, the EDPB considers that it is unlikely that an employee can refuse to give their consent to their employer for the processing of their data without suffering, or fearing to suffer, negative consequences. The EDPB specifies that employees "can only freely give their consent in exceptional situations, when absolutely no negative consequences will result from their refusal to give consent." Therefore, in view of the imbalance of power dynamics between an employer and their employees, and the resulting hierarchical dependence, the EDPB considers it improbable that an employee is able to respond freely to a request from their employer without feeling obliged to consent.

51. In this case, the Dispute Chamber again notes that the defendant was indeed an intern at noyb at the time the mandate was issued to noyb and the complaint was filed with the DPA. The Chamber therefore finds that there was a hierarchical link between the complainant and noyb at the time of the events. The Dispute Chamber also notes that it was in the context of her internship that noyb assigned the task to the complainant to visit websites to identify potential violations of the GDPR. And that it was following these visits ordered – or at least facilitated – by noyb that the decision to file a complaint with the DPA was made. The Chamber thus observes that the mandate given to noyb is situated within a professional context that may have influenced the complainant.

52. Therefore, by analogy to the rules regarding the protection of personal data, the Dispute Chamber considers that the fact that the complainant was an intern at noyb may have influenced her ability to give free consent.

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noyb was able to substantially affect the freedom of its consent during the execution of the mandate. The Chamber takes this additional element into account in its decision.

53. Secondly and finally, the complainant stated during the hearing that the mission entrusted to her is part of a broader "plan," which aims to verify the compliance of several websites with the GDPR. Furthermore, the Contentious Chamber adds that the visit to the defendant's website lasted precisely 3 minutes and 48 seconds. Based on these two elements, the Contentious Chamber concludes that there is no spontaneous nature to this visit; rather, it had no other purpose than the mere observation of a potential non-compliance of the defendant's cookie banner with regard to the GDPR, followed, if applicable, by the sending of a "pre-contentious letter" (see point 4) to the defendant and, if applicable, followed by the filing of a complaint with the DPA.

54. The Contentious Chamber thus considers that noyb acts not as a representative based on Article 80.1 of the GDPR, but rather as a complainant based on Article 80.2 of the GDPR, which states:

"Member States may provide that any body, organization, or association referred to in paragraph 1 of this Article, regardless of any mandate conferred by a data subject, has the right in the Member State

in question to lodge a complaint with the supervisory authority competent under Article 77, and to exercise the rights referred to in Articles 78 and 79 if it considers that the rights of a data subject under this Regulation have been violated as a result of the processing."

55. The Contentious Chamber notes that the Belgian legislator deliberately chose not to implement this open clause.

56. The Contentious Chamber adds that Article 58 of the LCA allows a legal entity – as is the case for noyb in this instance – to file a complaint with the DPA provided that it demonstrates a sufficient interest, as expressed by the Belgian legislator in the preparatory works of the LCA.

57. In previous decisions, the Contentious Chamber has had the opportunity to outline the scope of this notion. Although the Contentious Chamber, in its capacity as an administrative authority, deals with cases on a case-by-case basis, it notes that a sufficient interest must be understood as an interest that is concrete in nature and is therefore not specifically public. This is the case when an employer – in its capacity as a legal entity – wishes to file a complaint regarding a potential breach of the GDPR concerning a member of its staff.

58. In this case, it appears that the breaches specifically concern a member of noyb's staff, given that the complainant was an intern at the time of the events (see point 35).

59. However, the Contentious Chamber cannot limit its examination to this technical finding. Indeed, while it acknowledges that the breaches of the GDPR for which noyb wishes to file a complaint concern a person who was an intern at the time of the events, it cannot ignore the artificiality of the situation, which would ultimately amount to completely emptying Article 80.1 of the GDPR of its substance, as well as erasing the distance that separates it from Article 80.2 of the same Regulation.

60. Although the objective pursued by noyb constitutes a major concern within the European Union – and beyond – and aligns with the missions pursued by the DPA, the Contentious Chamber considers that based on the facts of the present case, noyb has used the complainant as a catalyst in order to act before the DPA and thus defend its objectives, which are by nature and necessarily of a public order.

61. Consequently, the Contentious Chamber notes that noyb does not demonstrate a sufficient interest to act as it pursues a public interest.

62. The Contentious Chamber concludes that it is not necessary to continue the examination of the present case, given that the aforementioned elements allow it to ascertain a lack of standing to act on the part of the actual complainant.

II.5. Regarding the grievances

II.5.1. The viewpoint of the SI and the parties

63. According to its investigation report, the SI concludes first of all that there is a violation of Articles 5.1.a. and 6.1.a. of the GDPR read in conjunction with Articles 4.11 and 25 of the GDPR and Article 10/2 of the Framework Law in that the defendant does not allow the possibility to refuse all cookies while it allows accepting all of them via their cookie banner ("Type A violation").

64. The SI specifies that at the time of connecting to the defendant's website, a cookie banner allows the possibility to "allow all cookies" or to select the cookies to which one wishes to grant permission by pressing a "All cookies" button. Thus, the SI did not find the presence of a button that would allow refusing all cookies.

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all cookies on the said banner, and further specifies that this results from a deliberate choice on the part of the defendant. The refusal of consent is not situated at the same level as the granting of consent; it is naturally more difficult for a concerned individual to not consent than to consent to the processing related to cookies.

65. In terms of its investigation report, the Supervisory Authority concludes secondly to a violation of Articles 5.1.a. and 6.1.a. of the GDPR read in conjunction with Article 10/2 of the LCA in that analytical cookies – not strictly necessary – were installed without obtaining the prior consent of the concerned individual ("Type I violation").

66. The Supervisory Authority explains that the "Cookie Choices" option on the cookie banner directs the concerned individual to a second screen that lists various categories of cookies. Among them are "Strictly Necessary Cookies" as well as "Analytical Cookies." Both are "Always Active" so that it is not possible to deactivate them. Furthermore, analytical cookies include cookies that enable marketing

targeting, and are therefore to be considered as personal data.

67. In terms of its investigation report, the Supervisory Authority concludes thirdly to a violation of Article 7.3 of the GDPR read in conjunction with Articles 24 and 25 of the GDPR in that it is not as easy to withdraw consent as it is to give it ("Type K violation").

68. In said report, the Supervisory Authority details in this regard that granting consent consists only of an action to be performed on a "Allow All" button – namely, a "click." In contrast, to withdraw consent globally, it is necessary to perform 4 such actions. For the withdrawal of consent to be as easy as its granting, the number of actions required should be equal for both choices – which is not the case in this instance.

69. In terms of its investigation report, the Supervisory Authority concludes fourthly and lastly to a violation of Articles 5.1.a. and 6.1.a. of the GDPR read in conjunction with Articles 4.11 and 25 of the GDPR and Article 10/2 of the LCA in that the use of colors and contrasts by the defendant is likely to negatively affect the conditions for granting consent by the concerned individuals, and that there is a misleading design of links on the first level of the cookie banner ("Type C, D, and E violations").

70. The investigation report establishes that the colors and contrasts are used in such a way that any concerned individual "will be more attracted to the 'Allow All Cookies' button than the 'Cookie Choices' button."¹⁷ Furthermore, the Supervisory Authority indicates that by titling the button allowing the withdrawal of consent regarding cookie processing as "Cookie Choices,"

17 Investigation report, p. 47.

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of cookies", it is not clear to the concerned person that this button specifically allows them to refuse consent to the aforementioned processing.

71.

The complainant subscribes to the analysis of the SI (see point 17).

72.

The defendant argues in its conclusions that, regarding the first finding of the SI, it was not clear at the time of the disputed facts that a cookie banner should present "Accept All" and "Reject All" buttons at the same level. Furthermore, it points out that the cookie banner of the APD did not present this equivalence of buttons at the time of the disputed facts. Therefore, it considers that blaming it for this based on the report of the EDPB¹⁸ would constitute a violation of the principles of non-retroactivity of the law and legal certainty. Finally, the defendant notes that its cookie banner is now compliant with this requirement.

73.

Next, regarding the second finding of the SI, the defendant argues that none of its analytical cookies are used for marketing purposes, and that the data collected in this way are not communicated to any third party. Additionally, the defendant points out that the analytical cookies are presented as such to the users of their website. Finally, the defendant notes that it has also complied with this, and thus the analytical cookies are now subject to the consent of the concerned individuals.

74.

Moreover, the defendant notes that, regarding the third finding of the SI, as explained in point 66, it was not clear at the time of the disputed facts that it should be as easy for a concerned person to withdraw their consent as it was to give it. It specifies that, on this point as well, it has complied, given that a "Reject All" button is located on their cookie banner at the same level as the "Accept All" button.

75.

Finally, regarding the fourth and final finding of the SI, the defendant argues that the choice of colors has no influence on the information provided to the concerned person as long as the cookie banner informs the concerned person of the different processing purposes pursued. Furthermore, the various choices available to the concerned person are perfectly readable and visible. Finally, the defendant again notes that it has complied with the observations of the SI by modifying its website.

II.5.2. The assessment of the Contentious Chamber

76.

As previously mentioned in point 57, the Contentious Chamber has decided to limit its examination to

the question of standing to act, excluding other aspects such as those related to cookies. Consequently, it will not conduct a detailed analysis of other points. Nevertheless, the Contentious Chamber encourages the parties to refer to the aspects related to cookies in the SI's investigation report. The most important aspects have meanwhile been included in the October 2023 cookie checklist, published on the APD's website.

III. Publication of the decision

77.

Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the Data Protection Authority. However, it is not necessary for this purpose that the identification data of the parties be directly communicated. On the other hand, the Contentious Chamber considers that the identification of noyb is necessary for the proper understanding of the decision and thus for the realization of the transparency objective pursued by the policy of publishing decisions of the Contentious Chamber.

In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be lodged, within thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant.

Such an appeal may be introduced by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code¹⁹. The interlocutory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code²⁰, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Contentious Chamber

19 The application must contain under penalty of nullity:

1° the indication of day, month, and year;

2° the name, first name, and address of the applicant, as well as, where applicable, their qualifications and national register number or business number;

3° the name, first name, address, and, where applicable, the quality of the person to be summoned;

4° the subject and a brief summary of the grounds for the application;

5° the indication of the judge who is seized of the application;

the signature of the applicant or their lawyer.

20 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed at the registry.

FOR THESE REASONS,

the Contentious Chamber of the Data Protection Authority decides, after deliberation, to dismiss the present complaint pursuant to Article 100, § 1, 1° of the LCA.